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JUDICIAL IMMUNITY

WEDNESDAY, OCTOBER 25, 1989

U.S. SENATE,
SUBCOMMITTEE ON COURTS AND ADMINISTRATIVE PRACTICE,
COMMITTEE ON THE JUDICIARY,
Washington, DC.

The subcommittee met, pursuant to notice, at 2:50 p.m., in room SD-226, Dirksen Senate Office Building, Hon. Howell Heflin (chairman of the subcommittee) presiding.

Also present: Senator Thurmond.

OPENING STATEMENT OF HON. HOWELL HEFLIN, A U.S. SENATOR FROM THE STATE OF ALABAMA

Senator HEFLIN. The subcommittee will come to order.

Good afternoon, I am sorry we are late in getting started. I would like to welcome you to the Senate Judiciary Subcommittee hearing on judicial immunity.

In 1868, the need for judicial immunity was explained in the following manner:

It is essential in all courts that judges who are appointed to administer the law should be permitted to administer it under the protection of the law, independently and freely, without favor, without fear.

This provision of the law is not for the protection nor the benefit of a malicious or corrupt judge, but for the benefit of the public, whose interest it is that judges should be at liberty to exercise their functions with independence and without fear of consequences.

Although the statement was written more than 120 years ago, I believe it is just as applicable today as it was then. Certainly, judicial independence is no less important today as it was in 1868.

Unfortunately, this independence has been severely eroded by the 1984 U.S. Supreme Court decision in *Pulliam v. Allen*. In *Pulliam*, a sharply divided 5 to 4 court held that the doctrine of judicial immunity neither prevents injunctive relief in Federal civil rights actions challenging decisions of a State judge, nor bars attorney fee awards against the judge. In essence, *Pulliam* disregards four centuries of unbroken precedent and destroys an ancient doctrine that is the bedrock of the Anglo-American system of justice.

Understandably, this decision has caused a tremendous amount of concern among our Nation's judicial officers. Indeed, at the time *Pulliam* was handed down, the Conference of Chief Justices said of that decision: "No development in recent times has aroused greater concern on the part of State judges." If anything, that concern is greater today. Judges fear that this decision will have a chilling

effect on judicial independence in both State and Federal courts, and I agree with them.

The ability of a judge to decide a case, without fear, is of paramount importance to judicial effectiveness. It is a cornerstone of our judicial system. Harassing litigation brought by disappointed parties against judicial officers can only result in the increasing timidity of judges, along with a tendency to avoid close and controversial decisions whenever possible. Consequently, the threat of a potential suit alone is enough to substantially impair the exercise of independence by judges.

In addition to the chilling effect of *Pulliam* on judicial independence, my colleagues in the judicial branch are concerned that this decision will create a new class of Federal litigation against State decisions. State court plaintiffs are placed, in effect, in a position of appealing to the Federal courts to enjoin State court action when they should be in State courts appealing through the State judicial system. This encroachment on the doctrine of federalism destroys comity between the two separate but equal judicial systems. State judges cannot act effectively if their decisions, no matter how closely they are made in keeping with State laws, are subject to immediate challenge in the Federal courts.

The Court in *Pulliam* challenged us to remedy this situation by stating, "That it is for Congress, not this Court, to determine whether and to what extent to abrogate the judiciary's common-law immunity." Congress must accept this challenge, and S. 590 is meant to do just that. A similar bill passed the Judiciary Committee of the 100th Congress, and it is my hope and desire that the full Senate will have an opportunity to consider S. 590 in the 101st Congress.

I look forward to hearing from our distinguished witnesses. In the interest of time, I would like to remind the witnesses to summarize their prepared statements, which will be placed in the record in their entirety, and to try to limit their summarized statements to 5 minutes.

Representatives from the ACLU and the NAACP legal defense fund were also invited to testify at this hearing. Those chose not to be here today. Their testimony, in addition to the testimony submitted by the Alliance for Justice, will be included in the hearing record.

We are delighted to have a distinguished group of jurists here to testify. Senator Thurmond is here.

Senator Thurmond, do you have an opening statement?

OPENING STATEMENT OF HON. STROM THURMOND, A U.S. SENATOR FROM THE STATE OF SOUTH CAROLINA

Senator THURMOND. Very briefly. Thank you, Mr. Chairman.

We are here today to consider S. 590, a bill which would prohibit injunctive relief and the award of attorneys fees against judicial officers acting in their judicial capacity. This bill, of which I am an original cosponsor, addresses the erosion of judicial independence resulting from the Supreme Court decision in *Pulliam v. Allen*.

In a case of statutory interpretation, the Supreme Court in *Pulliam* held that judicial immunity is not a bar to injunctive relief or